Behavioral Health Agency Inspection Report

Department of Health
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February 21, 2025

Newport Academy, 3804 Hastings Ave W, Port Townsend, WA. 98368-9642	Michael Tyers
Agency Name and Address	Administrator

ONGOING - ROUTINE	01/29/25	ECR03
Inspection Type	Inspection Onsite Dates	Inspector
X2025-67	BHA.FS.60957239	
Inspection Number	License Number	

Please note that the deficiencies/violations/observations noted in this report are not all-inclusive, but rather were deficiencies/violations/observations that were observed or discovered during the on-site inspection.

During the inspection, the following complaint was reviewed: 2025-239.

Deficiency Number and Rule Reference	Observation Findings	Plan of Correction
0675 Personnel-Agency record requirements WAC 246-341-0510(1)(a) A behavioral health agency must maintain a personnel record for each person employed by the agency. (1) The personnel record must contain all of the following: (a) A signed position description.	Based on interview, policy and procedure review, and personnel record review, the agency failed to ensure all staff had a signed position description in the personnel records. Failure to ensure a signed position description in the personnel file can lead to missed staff responsibilities and can lead to client harm. Findings included: 1. Review of the personnel records for Staff G, Care Coordinator, showed that there was no signed position description in their personnel file. 2. During an interview with Staff I, Human Resources (HR) Generalist, on 01/29/25 at 01:00 PM, they stated, “It looks like we do not have a signed position description.”	0675 Personnel-Agency record requirements WAC 246-341-0510(1)(a) Deficiency will be corrected as followed: Human Resources is responsible for implementing this correction. Effective 3/3/2025, Human Resources has confirmed signed position description in staff personnel files. Human Resources will complete monthly audit reports to ensure all new and current employees have signed position descriptions in staff files.

	3. Review of the policies and procedures titled, “Agency Personnel Record Requirements”, updated 11/01/23, states the agency will maintain a current, signed job description for all staff.	
0730 Personnel-Agency record requirements WAC 246-341-0510(1(f) A behavioral health agency must maintain a personnel record for each person employed by the agency. (1) The personnel record must contain all of the following: (f) A copy of the staff member's valid current credential issued by the department if they provide clinical services.	Based on interview, policy and procedure review, and personnel record review, the agency failed to ensure all staff had a copy of their current credential in the personnel records. Failure to ensure staff are credentialed may lead to poor client outcomes. Findings included: 1. Review of the personnel records for Staff D, Clinical Director, showed there was no record of a current credential in the personnel record. 2. During an interview with Staff I, Human Resources (HR) Generalist, on 01/29/25 at 01:00 PM, they verified there was no record of a current credential in the personnel record and stated, “I am not seeing [their] most current one in the file.” 3. Review of the policies and procedures titled, “Agency Personnel Record Requirements”, updated 11/01/23, states the personnel record must have a copy of the staff member's valid current credential issued by the department if they provide clinical services.	0730 Personnel-Agency record requirements WAC 246-341-0510(1(f) Deficiency will be corrected as followed: Human Resources is responsible for implementing this correction. Effective 3/3/2025, Human Resources has confirmed all new and current clinical team members have current credentials in personnel files. Human Resources will complete monthly audit reports to ensure all new and current clinical team members have current credentials in staff personnel files.
0925 Individual service record content WAC 246-341-0640(1)(a) A behavioral health agency is responsible for the components and documentation in an individual's individual service record content unless specified otherwise in certification or individual service requirements. (1) The individual service record must include: (a) Documentation the individual received a copy of counselor disclosure requirements as required for the counselor's credential.	Based on clinical record review and interview, the agency failed to provide documentation that individuals received a copy of counselor disclosure requirements as required for the counselor credential for 4 of 4 clinical records reviewed (Client #1-#4). Failure to ensure all clients receive the counselor disclosure requirements and show documentation in the clinical record may result in clients not choosing counselors who best suit their needs and can result in poor client outcomes. Findings included:	0925 Individual service record content WAC 246-341-0640(1)(a) Deficiency will be corrected as followed: Discharge Letters are signed and provided to each client upon discharge. We have submitted a request to our EHR to add in a field for treatment team names and credentials on this letter.

	1. Review of the clinical record for Client #1, Client #2, Client #3, and Client #4 showed they did not contain a counselor disclosure as required for the counselor's credential. 2. During an interview with Staff E, Administrator, on 12/03/24 at 2:28 PM, they stated, "We have it on the wall, just not a detailed copy for the clients."	

Introduction
We require that you submit a plan of correction for each deficiency listed on the inspection report form. Your plan of correction must be submitted to the DOH within ten business days of receipt of the list of deficiencies.

Descriptive Content
Your plan of correction must provide a step-by-step description of the methods to correct each deficient practice to prevent recurrence and provide information that ensures the intent of the regulation is met.

An acceptable plan of correction must contain the following elements:

- The plan of correcting the specific deficiency;
- The procedure for implementing the acceptable plan of correction for the specific deficiency cited;
- The monitoring procedure to ensure that the plan of correction is effective and that specific deficiency cited remains corrected and/or in compliance with the regulatory requirements;
- The title of the person responsible for implementing the acceptable plan of correction.

Simply stating that a deficiency has been "corrected" is not acceptable. If a deficiency has already been corrected, the plan of correction must include the following:

- How the deficiency was corrected,
- The completion date (date the correction was accomplished),
- How the plan of correction will prevent possible recurrence of the deficiency.

Completion Dates
The POC must include a completion date that is realistic and coinciding with the amount of time your facility will need to correct the deficiency. Direct care issues must be corrected immediately and monitored appropriately. Some deficiencies may require a staged plan to accomplish total correction. Deficiencies that require bids, remodeling, replacement of equipment, etc., may need more time to accomplish correction; the target completion date, however, should be within a reasonable and mutually agreeable time-frame.

Continued Monitoring
Each plan of correction must indicate the appropriate person, either by position or title, who will be responsible for monitoring the correction of the deficiency to prevent recurrence.

Checklist:

- Before submitting your plan of correction, please use the checklist below to prevent delays.
- Have you provided a plan of correction for each deficiency listed?
- Does each plan of correction show a completion date of when the deficiency will be corrected?
- Is each plan descriptive as to how the correction will be accomplished?
- Have you indicated what staff position will monitor the correction of each deficiency?
- If you included any attachments, have they been identified with the corresponding deficiency number or identified with the page number to which they are associated?

Your plan of correction will be returned to you for proper completion if not filled out according to these guidelines.

Note: Failure to submit an acceptable plan of correction may result in enforcement action.

Approval of POC

Your submitted POC will be reviewed for adequacy by DOH. If your POC does not adequately address the deficiencies in your inspection report you will be sent a letter detailing why your POC was not accepted.

Questions?

Please review the cited regulation first. If you need clarification, or have questions about deficiencies you must contact the inspector who conducted the onsite inspection, or you may contact the supervisor.

STATE OF WASHINGTON

DEPARTMENT OF HEALTH

3/19/2025

Newport Academy
3804 Hastings Ave W
Port Townsend, WA 98368-9642

Re: Exam Number: X2025-67
License Number: BHA.FS.60957239
Approved Plan of Correction
Date(s) of Inspection: 01/29/25

Dear Administrator:

This letter is to inform you that after careful review of the Plan of Correction (POC) you submitted for the exam recently conducted at your facility, the Department has determined that the POC is approved.

Based on the scope and severity of the deficiencies listed in your statement of deficiency report, the Department **will not** conduct an announced follow-up compliance visit to verify that all deficiencies have been corrected.

Reviewer: ECR03
Department of Health
HSQA/Office of Health Systems Oversight
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